

Ramswaroop Kushwaha v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · ['Manoj Kumar Gupta, J.', 'Prashant Kumar, J.']. 15 March 2023 · Writ - C No. 4720 of 2023 · **Demand withdrawn; petition disposed; fresh order under Code.**

HEADNOTE

Fifteen clear days' notice to file a reply is required before the hearing on a provisional assessment in an electricity-theft case. The provisional assessment of 17 May 2022, posted on 18 May 2022 for a hearing on 31 May 2022, did not comply. The demand notice of 28 July 2022 having been withdrawn, the writ was disposed of with liberty to pass a fresh order, after hearing, strictly under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ramswaroop Kushwaha petitioned the Allahabad High Court to quash a demand notice dated 28 July 2022 issued by respondent no. 3 in an alleged electricity-theft case. The corporation's instructions stated that the provisional assessment of 17 May 2022 was posted by registered post on 18 May 2022, with hearing fixed for 31 May 2022. The Executive Engineer filed a personal affidavit. Counsel for the electricity department then stated that the demand notice had been withdrawn and that a fresh order would follow an opportunity of hearing.

REUSABLE CONSTRUCTIONS

1. In an electricity-theft assessment, the hearing on the provisional assessment must leave the assessee fifteen clear days to file a reply. Posting the order the next day for a hearing less than fifteen clear days later does not comply. ¶ 3
2. Where the licensee withdraws the impugned theft demand and agrees to hear the consumer afresh, the writ may be disposed of with liberty to pass a new order only in strict accordance with the U.P. Electricity Supply Code, 2005. ¶ 4

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

fifteen clear days' notice to reply to a provisional theft assessment

HOLDING

The law requires fifteen clear days' notice to the assessee to file a reply to a provisional assessment. An order dated 17 May 2022, dispatched by registered post on 18 May 2022 and fixing 31 May 2022 for hearing, did not comply with the Electricity Supply Code, 2005. The demand notice dated 28 July 2022 having been withdrawn, with a fresh order to follow an opportunity of hearing, the petition was disposed of, leaving the respondents at liberty to pass that order strictly in accordance with the procedure in the U.P. Electricity Supply Code, 2005. ¶ 3-4

FLAG The orders invoke the U.P. Electricity Supply Code, 2005 and a fifteen-clear-days reply notice without numbering any clause.

PRINCIPLE TAGS

fifteen-clear-days-reply-notice The Court treated fifteen clear days' notice for a reply as mandatory, held that posting the 17 May 2022 provisional assessment on 18 May 2022 for a hearing on 31 May 2022 did not comply, and confined any fresh order to the procedure in the U.P. Electricity Supply Code, 2005 after the demand was withdrawn. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY, AND THE AMOUNT OF ANY FRESH ASSESSMENT.

The impugned demand was withdrawn. The respondents were left at liberty to pass a fresh order after hearing, strictly under the U.P. Electricity Supply Code, 2005. ¶ 4

NOT DECIDED — WHETHER ACTION SHOULD BE RECOMMENDED AGAINST THE EXECUTIVE ENGINEER FOR NOT FOLLOWING THE SUPPLY CODE NOTICE PROCEDURE.

The Court called for a personal affidavit and an explanation on 1 March 2023. On 15 March 2023 it disposed of the petition on the withdrawal without making a recommendation. ¶ 3-4

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.